ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	164th Commission Meeting
DATE:	16 February 2024
TIME:	10:00 AM
VENUE:	*Druk Dradhir Khang*

#	AGENDA & DISCUSSION	DECISION
1	Update on the NACD commemoration – DoPE *ED, DoPE apprised the Commission on the build-up programs implemented till date including media engagements to promote NACD commemoration. Following this, a draft program for the inaugural NACD commemoration scheduled on 21 February 2024, was presented for directives and endorsement.* *Besides this, the Commission deliberated on the importance of onboarding the ECB for greater ownership of the recommendations emanating from the research on elections and its implementation.*	**Noted the update with following specific directives to:** • **schedule the NACD observance immediately after the celebration of His Majesty's Birth Anniversary at Changlimithang.** • **ensure full attendance of staff especially those at the Head Office, except for those on long leave, official tour or under exigent situations.** • **include Zhapten either at the start or end of the program and ensure media coverage of the event.** • **explore extending invitation to critical partners viz. the heads of OAG & RAA, Constitutional Offices, Law Enforcement Agencies, or agencies involved in NACD build-up programs.** **Directed EAD, DoPE to follow-up with the ECB to discuss way forward on the extent of engagement for the conduct of research on elections.**
2	Appeal case related AD – DoPE *ADMD appraised the Commission on the appeal submitted by Mr. Thukten Tshering, former school mess in-charge, on the penalty imposed for non-declaration for the income year 2022. The ADMD appraised that the appeal did not justify the grounds for waiving off the penalty. It was noted that the declarant was well aware of the obligation to declare, as evidenced by the declaration filed for the income year 2021. Additionally, while the*	**Approved as recommended, with the directive to explicitly state that the provided justification neither offers alternative facts for consideration nor aligns with the past precedents on similar cases.** **Besides this, the Commission directed the ADMD the following to:** • **start working on the detailed analysis of AD data for the upcoming AR 2023-2024.** • **extend the deadline for AD by one month (1 March-31 May), aligning with**

	declarant's transfer occurred in early 2023, the vacation of office was only filed in July 2023, extending beyond the declaration period. Based on these findings, the ADMD recommended upholding the penalty imposition. *In addition, the ADMD apprised the Commission on the series of training sessions conducted, both virtually and in-person, for 279 ADAs representing 138 agencies. These sessions covered various aspects of the ADS and updated provisions in the ADR 2022. Practical issues discussed during the sessions included:* • *CoI situations for ADAs when verifying their own declarations, suggesting either verification by the CADA or delegation to the respective HoAs.* • *requirement for foreign nationals recruited and stationed outside Bhutan by some of the corporations to declare their assets and liabilities.* • *mandating the parent agencies to administer & manage declarations of those covered person on secondment/deputation.*	**the recent extension of PIT deadline.** • **enhance advocacy efforts to elucidate the rationale behind ADS and emphasize key aspects related to CoI management.** • **explore assigning the role of verifying the declarations of ADAs by the HoA, considering audit trail feature available in the ADS.** • **discuss with LD on the issues related to declaration of assets and liabilities by foreign nationals in keeping with the UNCAC provisions and submit a proposal to the Commission. Also, consult MoFAET to get inputs from the perspective of managing foreign nationals working for various embassies and mission offices.** • **Uphold the current practice of administering and managing declarations of those covered persons on secondment/deputation, acknowledging the practical challenges faced by the parent agencies in keeping track of these employees.**
3	Update on handing taking of seized items – DoPS & LD *EMD, DoPS appraised the Commission on the seizure of earthmoving machinery pertaining to Case 20/2023-2024 at Dagana. During the proceeding, it was learned that the machinery was on hire by a local contractor for the construction of a farm road, which was due for completion in few days. After assessing the logistical issues, the machine was seized, and a temporary arrangement of custody was agreed with the Chiwog Tshogpa.* *Considering that the primary accused was deceased and the spouse lacked the means to provide an equivalent amount as a guarantee for the seized machine,*	**Directed EMD, DoPS in consultation with the LD to exhaustively discuss on the most viable option as outlined in the Rules and accordingly propose to the Commission immediately the following week, given the pressing nature of the matter.** **In general, the Commission underscored the importance to exercise highest level of due diligence and urgency, especially when dealing with properties under provisional measures, in order to mitigate any potential legal repercussions.**

	deliberations ensued regarding whether to pursue the equivalent amount from the spouse or involve the OAG in seeking non-conviction-based forfeiture or other options outlined in the Rules for Management of Property under Provisional Measures 2023.	
4	Update on the pool vehicle for ROPL – SS *SS appraised the Commission that the repair of the pool vehicle at ROPL would cost Nu.451,674.11 including the cost of turbo replacement. The vehicle history show that the turbo was repaired twice before, incurring a total expense of Nu.503,946.00. Furthermore, technicians advised that resolving the issue completely requires repairing the steering rack as well. In view of the above perennial issue, SS proposed surrendering the pool vehicle to MoF.*	**Approved with the directive to the SS to formally request replacement from MoF emphasizing the urgency of the matter. The request should include the rationale, highlighting the safety concerns besides recurring cost and budget implications. As an interim arrangement, directed the SS to deploy the Hilux (BG-1A-1354) from the Head Office, after servicing.**
5	Proposal on server room expansion – SS *SS presented the proposal for supply and installation of toughened glass in the server room to enhance soundproofing at the quoted price of Nu.89,099.00.* *Additionally, SS proposed for substitution of the current Eversign subscription with a DocHub subscription, considering the significant cost difference, with DocHub costing only about Nu.10,000.00 (USD 10.00/month) per year compared to the annual cost of Nu.71,000.00 for Eversign.* *In addition, SS appraised that with the support from the GovTech Agency, a dedicated email account has been created to manage all correspondence related to subscriptions availed by the ACC.*	**Approved the proposal on supply and installation of toughened glass and advised to ensure safety and security of the equipment installed in the server room.** **Approved the subscription to DocHub and emphasized that the subscription must ensure security and confidentially concerns related to documents including accommodating maximum number of users. Also, it was advised to ensure regular backups of all the documents processed through the application.**
6	Membership to GLOBE Network – LD & PPD *PPD & LD appraised on the correspondence conveyed by the MoFAET regarding the membership to the GLOBE Network.*	**In keeping with the decision of the 133rd Commission meeting held on 29 & 30 June and 3 July 2023, the Commission decided to uphold the earlier decision and directed the PPD to inform the MoFAET that the ACC is cognizant of the network and is presently evaluating its advantages and disadvantages.**

7	BIMSTEC Convention on Extradition – LD *LD appraised the Commission to nominate Sonam Wangdi to represent the ACC for the review of the convention.*	**Approved.**
8	Present draft Web Upload Protocol – PPD *PPD presented the draft Web Upload Protocol outlining the coordination framework for content creation for the website and social media. The protocol also includes turnaround time (TAT) for publishing and delineation of respective roles of the relevant Departments/Divisions.*	**Approved with following specific directives to:** • **maintain up-to-date stories on the website and social media platforms.** • **include clear roles and parameters for graphics designer.** • **ensure proper scrutiny of publications on the website and social media platforms to prevent any unexpected issues or misperception among the public.** • **inform all staff to exercise highest level confidentiality and due diligence when it concerns sharing of any information on the website and social media including to the media firms, following established procedures routed through relevant focal persons viz. media officer and spokesperson. This is not only expected to ensure responsible sharing of information in line with the Code of Conduct but also streamline consistency, standardize messaging, and minimize the risks of misrepresentation and negative consequences.** • **LD & PPD to work on classifying information within the ACC based on sensitivity of the information vis-à-vis the mandate to determine appropriate levels of accessibility.**
9	Present final draft Policy & Procedure on Proactive Investigation – PPD	**Deferred**
10	Article publication in the BNLI Journal – PPD	**Deferred**

Commissioner **Commissioner** **Chairperson**